

HOUSE BILL 786

By Howell

AN ACT to amend Tennessee Code Annotated, Title 7,
Chapter 51; Title 39 and Title 65, Chapter 15,
relative to vehicles for hire.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 65, Chapter 15, Part 3, is amended by adding the following as a new section:

65-15-312. Criminal impersonation of a transportation network company driver.

(a) It is an offense for a person to:

(1) Impersonate a transportation network company driver by making a false statement, using a false display of distinctive signage or emblem known as a trade dress, trademark, branding, or logo of the transportation network company, or committing another act that falsely represents that the person has a current connection with a transportation network company; or

(2) Falsely represent that the person is responding to a passenger ride request for a transportation network company.

(b) A violation of subsection (a) is a Class B misdemeanor; provided, that if the violation occurs during the commission of a separate felony offense, then a violation of subsection (a) is a Class E felony.

SECTION 2. Tennessee Code Annotated, Title 7, Chapter 51, Part 10, is amended by adding the following as a new section:

7-51-1009. Criminal impersonation of a private passenger-for-hire vehicle driver.

(a) As used in this section, a "passenger-for-hire vehicle":

(1) Means a motor vehicle that:

(A) Is designed or constructed to accommodate and transport not more than fourteen (14) passengers for hire, exclusive of the driver;

(B) Principally operates within the corporate limits of cities and suburban territory adjacent to the cities; and

(C) That is not operated on a fixed route or schedule;

(2) Includes a taxicab, limousine, or sedan, as defined in § 7-51-1007;

and

(3) Does not include a personal vehicle used in conjunction with a transportation network company under title 65, chapter 15, part 3.

(b) It is an offense for a person to:

(1) Impersonate a passenger-for-hire vehicle driver by making a false statement, using a false display of distinctive signage or emblem known as a trade dress, trademark, branding, or logo of a passenger-for-hire vehicle, or any other act that falsely represents that the person has a current connection with a passenger-for-hire vehicle service; or

(2) Falsely represent that the person is responding to a passenger ride request for a passenger-for-hire vehicle.

(c) A violation of subsection (b) is a Class B misdemeanor.

(d) If theft of a passenger-for-hire vehicle has occurred as described in § 39-14-103, then this section does not apply to the owner of the passenger-for-hire vehicle.

SECTION 3. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 4. This act takes effect July 1, 2025, the public welfare requiring it, and applies to acts committed on or after that date.